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[doc. web n. 9979171]

Provision of January 11, 2024

Register of provisions

n. 9 of January 11, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European

Parliament and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to the

processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

providing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures of external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Reporter Prof. Pasquale Stanzione;

PREAMBLE

1. Introduction.

While noting that, based on a check

carried out by the Authority on the relevant institutional website, the Province of Sassari (hereinafter,

the "Province") has published the contact details of the

Data Protection Officer (hereinafter, the "DPO") appointed,

pursuant to Article 37 of the Regulation, by

Decree No. 72 of October 22, 2018 of the Extraordinary

Administrator, it does not appear, however, that such

Province has communicated the contact details of the DPO

to the Authority, for which compliance it has made available a dedicated channel (accessible at the page <https://servizi.gdpd.it/comunicazionerpd/s/>).

2. The investigative activity.

By note of XX (prot. n. XX), the Office, based on the elements acquired and the checks carried out, notified the Province, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, par. 2, of the Regulation, for failing to communicate the contact details of the DPO to the Authority, in violation of Article 37, par. 7, of the Regulation.

With the same note, the Province was invited to submit to the Guarantor written defenses or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note of XX (prot. n. XX), the Province submitted its defensive memorandum, stating, among other things, that:

- “the failure to register on the Guarantor's site was presumably due to a mere technical mishap that led to the contested error”;
- following your report, upon finding the shortcoming, the name of the newly identified DPO was communicated, and it was included in the privacy section of the institutional website of the entity.”

3. Outcome of the investigative activity.

The processing of personal data by public entities must occur in compliance with the provisions of the Regulation and the Code.

Pursuant to Article 37 of the Regulation, “The data controller and the data processor systematically designate a data protection officer whenever: a) the processing is carried out by a public authority or by a public body, except for judicial authorities when exercising their judicial functions” (par. 1, lett. a)); “The data controller or the data processor publishes the contact details of the data protection officer and communicates them to the supervisory authority” (par. 7).

Moreover, in the “Guidelines on Data Protection Officers (DPOs)”, adopted by the Article 29 Working Party on data protection

on December 13, 2016, and amended on April 5, 2017, it is added that “Article 37, seventh paragraph, of the GDPR requires the controller or the processor to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both the data subjects (within or outside the entity/body that is the controller or processor) and the supervisory authorities can easily and directly contact the DPO without having to refer to another structure operating within the controller/processor” (par. 2.6).

Also the “Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector,” adopted by the Authority on April 29, 2021, with provision no. 186 (web doc no. 9589104), specifies that “Regarding communication to the Authority, it is emphasized that the Authority has made available a specific online procedure not only for communication but also for the

variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific purpose and is available at the page <https://servizi.gdpd.it/comunicazionerpd/s/>, where the appropriate instructions and related FAQs are also provided: moreover, attention is drawn to the entities to correctly enter the required data, such as the identification of the data controller (the entity as a whole, and not the legal representative) and the completion of the tax code of the administration (and not the VAT number, or the tax code of another subject)" (par. 7).

In this case, having verified the failure to communicate the contact details of the DPO to the Authority, the violation of art. 37, par. 7, of the Regulation is established.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the Province during the investigation – the truthfulness of which may be subject to accountability pursuant to art. 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of this procedure, as none of the cases provided for by art. 11 of the Authority's Regulation no. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Province for failing to communicate the contact details of the DPO to the Authority in violation of art. 37, par. 7, of the Regulation is noted.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code). The Authority, pursuant to arts. 58, par. 2, lett. i), and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to article 166, comma 7, of the Code" (art. 16, comma 1, of the Authority's Regulation no. 1/2019).

In this regard, in this case, the violation of the cited provision is subject to the application of the same administrative pecuniary sanction provided for by art. 83, par. 4, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation, with respect to which the following is observed. The failure to communicate the contact details of the DPO by the Province has negatively affected the possibility that the Authority could contact the DPO easily and directly.

On the other hand, it is noted that the Province has taken steps to remedy the violation and mitigate its possible negative effects (having communicated the contact details of the DPO to the Authority on April 27, 2023), and that there are no previous relevant violations committed by it or previous provisions pursuant to art. 58 of the Regulation. The negligent nature of the violation is also noted. In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €2,000 (two thousand) for the violation of art. 37, par. 7, of the Regulation as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

It is also deemed that the accessory sanction of publication on the Authority's website of this provision should apply, as provided for by art. 166, comma 7, of the Code and by art. 16 of the Authority's Regulation no. 1/2019, as it concerns the failure to comply with an obligation that has become mandatory for more than five years. Finally, it is considered that the conditions of art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares unlawful the conduct of the Province of

Sassari, described in the terms of the reasoning, consisting of the violation of art. 37, par. 7, of the Regulation.

ORDERS

The Province of Sassari, located at Piazza D'Italia n. 31, 07100, Sassari - CF 00230190902 - pursuant to arts. 58, par. 2, lett. i), and 83, par. 5, of the Regulation and art. 166, comma 2, of the Code, to pay the sum of €2,000 (two thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning;

ORDERS

To the Province of Sassari, to pay the sum of euro 2,000 (two thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

In this regard, it is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of 1/9/2011);

ORDERS

the publication of this provision on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code;

the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 11, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei